



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM AP-01

FILED WITH THE APPELLATE CLERK
REV. 08/2026

IN THE APPELLATE COURT OF FLORIDA
DIVISION OF CRIMINAL AND CIVIL APPEALS

NOTICE OF APPEAL OF SENTENCE

Appellate Court of Florida - Division of Criminal Appeals

APPELLANT	CASE NUMBER (UCN)
VS.	Format: A-2026-000123 (APPELLATE COURT)
APPELLEE	DIVISION
	JUDGE / HEARING OFFICER
Full name of party	Divisions: Criminal Appeals Civil Appeals Traffic Appeals

HOW TO USE THIS FORM

File this within 30 days of the judgment and sentence you are challenging. The deadline cannot be extended. Attach a copy of the judgment (Form CR-10) and the ruling being appealed (Form JR-01). An appeal reviews the record for legal error - it is not a new trial.

CASE CAPTION

APPELLATE CASE NO.	DIVISION	DATE FILED	LOWER COURT CASE NO.
DEFENDANT / APPELLANT	USERNAME	CURRENTLY IN CUSTODY	RELEASE DATE
APPELLEE	TRIAL JUDGE	TRIAL DIVISION	DATE OF SENTENCE

NOTICE OF APPEAL OF SENTENCE

The Defendant / Appellant hereby gives notice of appeal from the judgment and sentence entered in the lower court on the date stated above, and states as follows:

JUDGMENT BEING APPEALED

OFFENSE(S) OF CONVICTION	DEGREE	PLEA OR VERDICT
SENTENCE IMPOSED	FINE AND COSTS	PROBATION TERM

GROUND(S) FOR APPEAL

☐ The sentence exceeds the statutory maximum	☐ The sentence is disproportionate to the offense
☐ The Court failed to consider mitigating factors	☐ The Court considered an improper aggravating factor
☐ The Court departed from the guidelines without stated reasons	☐ The plea was not knowing, intelligent, or voluntary
☐ The plea agreement was not honoured by the Court	☐ Evidence was admitted that should have been suppressed
☐ The evidence was legally insufficient to convict	☐ The jury was improperly instructed
☐ The Court denied a meritorious motion	☐ Counsel was ineffective at sentencing
☐ The defendant was denied the right to allocute	☐ Restitution was ordered without a proper basis
☐ The Court lacked jurisdiction over the offense	☐ Other (state below)

STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

NUMBER EACH ISSUE. STATE IT AS A QUESTION THE APPELLATE COURT CAN ANSWER YES OR NO.

CONCISE STATEMENT OF THE FACTS RELEVANT TO THE APPEAL

ONLY THE FACTS THAT BEAR ON THE ISSUES ABOVE, WITH CITATIONS TO THE RECORD WHERE POSSIBLE

PRESERVATION OF ERROR

FOR EACH ISSUE, STATE WHERE IN THE RECORD THE OBJECTION WAS MADE. UNPRESERVED ISSUES ARE REVIEWED ONLY FOR FUNDAMENTAL ERROR.

RELIEF SOUGHT

☐**VACATE THE SENTENCE AND REMAND FOR RESENTENCING**

The conviction stands but the sentence must be imposed again by the lower court.

☐**REDUCE THE SENTENCE**

The appellate court should correct the sentence directly.

☐**VACATE THE CONVICTION AND SENTENCE**

The conviction itself cannot stand.

☐**REVERSE AND REMAND FOR A NEW TRIAL**

Trial error requires the case to be tried again.

☐**REVERSE AND DISCHARGE THE DEFENDANT**

The evidence was insufficient and the defendant may not be retried.

☐**PERMIT WITHDRAWAL OF THE PLEA**

The defendant should be allowed to plead anew.

FILINGS AND REQUESTS ACCOMPANYING THIS NOTICE

☐

Copy of the judgment and sentence (CR-10) attached

☐

Copy of the ruling appealed (JR-01) attached

☐

Transcript ordered (Form AD-07)

☐

Record on appeal requested at public expense

☐

Motion for stay of sentence pending appeal

☐

Appellate bond requested

☐

Request to proceed as an indigent (Form CR-09)

☐

Request for appointment of appellate counsel

☐

Oral argument requested

☐

Expedited review requested

BOND AND STAY

STAY REQUESTED

APPELLATE BOND AMOUNT

BOND POSTED

FILING FEE

FEE WAIVED

CERTIFICATE OF SERVICE: I certify that a copy of this Notice of Appeal was furnished to the Office of the State Attorney, to the lower tribunal, and to the Clerk of the Appellate Court on the date written below.

APPELLANT OR APPELLATE COUNSEL

Bar number

PRINTED NAME

DATE

APPELLATE CLERK

Notice docketed

PRINTED NAME

DATE

APPELLATE CLERK USE ONLY

DATE DOCKETED

PANEL ASSIGNED

INITIAL BRIEF DUE

ANSWER BRIEF DUE

REPLY BRIEF DUE

RECORD DUE FROM LOWER COURT

ORAL ARGUMENT SET

STATUS

NOTES

An appellate court does not hear new witnesses, accept new evidence, or reweigh the credibility of testimony. It decides only whether the lower court applied the law correctly to the record that already exists. Arguments raised for the first time on appeal are usually waived.